



File No.: EXP202306598

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On March 23, 2023, Mr. A.A.A. (hereinafter, the claimant) sent an email to VODAFONE ESPAÑA, S.A.U. (hereinafter, the respondent) requesting "(...) that all voice recordings with the Customer Service be provided, including those related to the offer made in October 2019," "(...) all personal data related to all dealings with any Vodafone customer service, including those related to the fault ***FAULT.1" and "(...) all data about me that is included in your files, resulting from any profile generation, credit analysis, preparation, processing, or treatment of the data, as well as the origin of the same, the assignees, and the specification of the specific uses and purposes for which they were stored."

The respondent replied on March 24, 2023, stating "(...) We inform you that the personal data relating to you that is recorded in the systems of Vodafone España is as follows (attached file).

To clarify, under your customer reference and contract ***CONTRACT.1, a contracting document and voice recording file are attached, available registered in the data file.

Recordings: ***NUMBER.1 of ***DATE.1 10:41:33, ***NUMBER.2 of ***DATE.2 18:00:20, ***NUMBER.3 of ***DATE.3 15:58:09

Please note that your personal data provided to Vodafone España S.A.U. under the contract formalized by yourself has been used in accordance with the provisions of the General Conditions of service provision, as well as the applicable legislation for this purpose, which is that Vodafone España S.A.U. carries out automated processing of such data for the following purposes (...)"

On March 27, 2023, the claimant sent another email to the respondent indicating that they had only provided 6 copies of contracts, a PDF document with general data, and 3 voice recordings, and requested "That all personal data contained in all Vodafone data files be provided. Specifically, but not limited to, I request:

- All data related to any contact with Vodafone customer service (call center, chats, social networks, email...)

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including the recordings of those calls and notes related to any incident or malfunction. I expressly request those related to the calls made to customer service on March 8, 2023, and chats on March 9, 2023, as well as those related to the malfunction ***MALFUNCTION.1.

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Data regarding the commitment to stay, including the applicable period, amount, and contracts and voice data in which it is reported.

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Data related to the quality of the service provided

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Traffic data, location data, data on the use of the television service, and data on browsing and use of any digital device or application.

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Data by which the use and billing of services such as "callback" or "dictaSMS" is requested and/or authorized

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Profile data of any kind, credit analysis, information requested and/or obtained from credit agencies, delinquent files, fraud prevention agencies, and any other provider of demographic or socioeconomic data.

The responding party replied on March 27, 2023, "(...) Through this communication, we inform you that the exercise of data access previously carried out has been granted according to the data related and registered in your data file, which was granted in its entirety. It should be clarified that the right is completed according to the parameters and regulations of the European Parliament regulation in force. It must be taken into account that the requested conversations are not recorded in your data file, as they are stored randomly for quality purposes, and a hiring document has been sent to you as backup for the same, therefore it is not possible to send the recordings as they do not exist in the system.

On the other hand, you have had the following registered malfunctions (**MALFUNCTION.1) on March 21, 2023, with a closure date of March 22, 2023, and the malfunction (**MALFUNCTION.2) on March 27, 2023, with a closure date on the same day it started. According to security policy, the transcription or content of the same cannot be provided by this means.

Finally, you have two commitments to stay that started on October 22, 2021, and that end on November 1, 2023, which are associated with the loyalty discount currently applied to your package, these commitments are detailed in the hiring documents previously attached."

Dissatisfied with the response received, the claimant filed a complaint with this Agency for not having their right of access duly attended to, and requests the AEPD to "(...) require Vodafone to provide me with all the requested data, including, but not limited to, all data related to any contact with Vodafone's customer service (call center, chats, social networks, email...), the recordings of those calls if they exist, and notes related to any incident or malfunction. I expressly request those related to the calls made to customer service on March 8, 2023, and chats on March 9 and 27, 2023, as well as those related to the malfunction ***MALFUNCTION.1."

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SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent party, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations, with no record of any response having been submitted.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on June 28, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent party a hearing procedure, so that within ten working days it could present any arguments it deemed appropriate, stating, in summary, that once the complainant's right of access was received, it was addressed, and a response was provided in due time and form on March 24, transferring to the complainant a file that included the files and personal data contained in its internal systems, including the contracts formalized with Vodafone, the voice recordings corresponding to interactions with the entity's customer service, as well as the record of faults registered under the customer ID, along with information related to the commitment to remain associated with the contracts made with the respondent party.

"(...) However, despite the response provided by my client, the complainant reiterated this access request on March 26, 2023, requesting the "totality of personal data contained in all data files of Vodafone" and also citing a series of information and considerations that the complainant understood should be sent to him "expressly, but not limited to them." Among which were cited "traffic data," "location data," "data on the use of the television service," "navigation and usage data of any digital device or application," "data for which the use and billing of services such as 'callback' or 'dictaSMS' is requested and/or authorized," or "profile data of any kind, credit analysis, information requested and/or obtained from credit agencies, files of defaulters, fraud prevention agencies, and any other provider of

demographic and socioeconomic data.” This new request, despite being considered excessive and disproportionate to the scope of the right of access, was correctly processed by my client and responded to on March 27 - that is, the day after the submission of his request - again providing the totality of information contained in its internal systems and databases, as well as the reasons why it was not possible to satisfy certain aspects of the complainant's request.

Attached as Document number 1 is evidence of the responses sent to Mr. A.A.A. regarding his request to exercise the right of access.

(...) Once this Agency received the present information request and despite having addressed in due time and form each of the complainant's access requests, transferring the information and files contained in its internal systems, my client has proceeded to send a new communication to

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Claimant, responding to the requests of the claimant in the exercise of the right of access, reiterates the impossibility of providing all the requested information, either because Vodafone has simply not collected or processed it; because the claimant has not given their consent for its processing and, therefore, it has not been carried out; or because such information does not form part of a structured file according to specific criteria, as stated in Recital 15 of the General Data Protection Regulation (hereinafter, "GDPR") and in Article 4, paragraph 6.

Attached as Document number 2 is a copy of the new communication sent to Mr. A.A.A., detailing the reasons why some of this information could not be provided.

The responding party indicates that it has provided the claimant with:

- A copy of the 8 recordings of the calls that have been identified with the Vodafone Customer Service, in which various procedures are carried out.

“It is relevant to emphasize, as this Agency is already aware, that Vodafone, due to the large volume of interactions it receives in its Customer Service, only records some of the calls randomly and for quality purposes. If a contract is made during the call, which is perfected through voice recording, that interaction will be recorded in any case as proof of the customer's consent.”

- In the last response provided to the claimant, a copy of the interactions recorded in Vodafone's internal systems with its Customer Service, as well as the notes from the Vodafone agents who managed the multiple requests from Mr. A.A.A. The Vodafone Customer Service collects the information regarding the request made, the reason for it, and the identification code of the interaction. In these interactions, specific mention is made of the details recorded regarding the fault ***FAULT.1, as requested. Additionally, the interactions recorded on March 8 and 9 of that same year are provided.

- Copies of all contractual documentation generated where information regarding the commitment to stay and the agreed amount is mentioned. This information had been previously conveyed in their earlier requests, as mentioned in their complaint.

- Regarding the quality of service data and the use of the Vodafone app to which access is requested, “(...) it is relevant to highlight that the collection of this data by Vodafone results in aggregated reports, therefore, the information requested by Mr. A.A.A. would not be possible to provide.”

- “With respect to the data generated as a result of browsing, traffic, billing, and location, these are data that are generated in a manner...”

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inherent to the provision of the service, without being for any other purpose than to enable the transmission of communications generated during the provision of the service by Vodafone. In the event that Mr. A.A.A. had granted his consent for the processing of this data for commercial purposes, Vodafone could have generated a profile of the claimant in order to provide him with relevant

commercial information tailored to his interests. However, since Mr. A.A.A. did not grant consent for these purposes, such data processing has not been carried out.”

It should be emphasized that this type of data, including that generated as a result of the use of the contracted services, including television services, arises solely from the mere provision of the service, and is not stored in a structured data file that can be provided to the claimant. The only purpose for which Vodafone processes this information is for the pure provision of the service and billing thereof. Only if the customer had given his consent for the processing of this data for commercial purposes could Vodafone have created a profile of him to impact him with personalized commercial communications. However, the claimant has not provided consent to Vodafone for the creation of these profiles, nor has he been impacted with personalized communications. A screenshot of the consents granted by Mr. A.A.A. regarding data protection is attached.

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Regarding the request for access to data collected on social networks, it is stated that it does not carry out the collection of customer information generated on social networks, nor has it performed any processing that allows linking the profile or profiles of the claimant on social networks or other platforms with his customer ID, “(...) beyond those requests, complaints, or communications that Mr. A.A.A. may direct to my client's profiles on social networks, whose requests are redirected to the Customer Service of Vodafone, with the record of the interactions managed by this service found in Document number 4.”

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“As for the remaining requests, such as data related to ‘data for which the use and billing of services such as “callback” or “dictaSMS” is requested and/or authorized, it should be mentioned that both services are activated if the call recipient has them enabled and the calling person accepts their execution. (...) The caller must also grant their consent to the service, and if they agree, the cost is charged to them. This information is reflected in the invoices generated for the billing of the services since, if the steps detailed in this paragraph are followed, a cost will be generated that will be reported in the invoices. Therefore, access to this information has been granted at the moment the invoices were provided to the claimant.”

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“The information requested regarding ‘credit analysis, credit agency, negative asset solvency files, fraud prevention, or any other similar type of provider,’ Vodafone, in cases where the customer requests the acquisition of a terminal with installment payment, verifies whether there is any debt with this entity, or if the customer is listed in solvency files.”

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negative patrimonial. Prior to this consultation, the Vodafone agent managing the contracting informs the client of this procedure and requests their consent and ID to carry it out. (...). In the case of Mr. A.A.A., two terminal contracts with installment payments have been identified during the year 2020, which were processed. My client, however, cannot provide the requested information, as it does not store such information; rather, it is a momentary verification of the possible existence of a debt by a client with products offered by third parties, which yields a positive or negative result, and only if the result of the consultation is positive is the purchase of a terminal authorized. Therefore, Vodafone does not access more information than an “authorized” or “not authorized” operation result for the terminal purchase request that the client wishes to process. Thus, regarding Mr. A.A.A., the data derived is positive for the sale of the terminal. (...)

“(...) it should be concluded that Vodafone has duly attended to the request of Mr. A.A.A., adequately responding to the right of access exercised by him and providing all the information available in its internal systems and databases regarding Mr. A.A.A. and the services contracted by him. (...)”

“Let it serve as evidence of this, the responses offered to each and every one of the requests made by the claimant, despite the fact that this type of request clearly exceeds the framework regulated in the

right of access, being, moreover, a request made by the claimant after a disagreement regarding the quality of the service provided, as the claimant has stated to the Vodafone Complaints Service via telephone call. A screenshot of the interaction recorded in Vodafone's internal systems is attached, in which the claimant, during a call made by the complaints team to clarify the claimant's request, states that the request for access to all this information in general is due to his mere dissatisfaction with the treatment received from Vodafone during the time he has been a customer, so the intent of his complaint is to use this Agency as a means to remedy that discomfort."

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claimant, so that, within ten business days, they may formulate the allegations they deem appropriate, indicating, in summary, and as far as this procedure is concerned, that the responding party has provided "(...) 6 copies of contracts, a pdf document with general data, and 3 voice recordings. This response does not include 'the list of faults registered under your customer ID' that Vodafone mentions in its response to the AEPD."

"(...) In the document to the AEPD, Vodafone insists: '... again providing all the information contained in its systems and internal databases, as well as the reasons why it was not possible to satisfy certain aspects of the claimant's request.'

However, in that email, no other file is provided, and only the following information is added: 'On the other hand, the following faults have been registered (**FAULT.1) on March 21, 2023, with a closure date of March 22, 2023, and the fault (**FAULT.2) on March 27, 2023, with a closure date of

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same start date, according to the security policy, the transcription or content of the same cannot be provided through this means. Lastly, you have two commitments of permanence that started on October 22, 2021, and that end on November 1, 2023, which are associated with the loyalty discount currently applied to your package, these commitments are related in the previously attached contracting documents."

"(...) Vodafone, in its letter to the AEPD, considers my request disproportionate or excessive.

However, in none of the first two responses it sends me does it state this fact nor does it even request that I specify again whether I am referring to all the data or part of it. In fact, it considers my request satisfied with the sending of 6 copies of contracts, a PDF document with general data, and 3 voice recordings, apart from two paragraphs in the second response with general data on 2 outages and the commitments, which does not seem excessive or disproportionate. (...)"

The claiming party requests this Agency to

"1. Require Vodafone to provide the file of interactions made under the claimant's ID by the Customer Service agents in a complete, legible, and intelligible manner.

2. Require Vodafone to explain when and how I was informed about the consultation of negative financial solvency files and provide the consent that it claims in its letter is requested from the customer in these cases.

3. Require Vodafone to provide my consent for the provision and processing of data for the dictaSMS service.

4. That the AEPD evaluate the opening of Sanctioning Procedure against Vodafone for repeatedly failing to address the right of access to personal data, as well as for the consultation of financial solvency files without written information about this consultation or my consent, as well as the possible processing of data from the dictaSMS service without consent."

"(...) 2. I believe that Vodafone continues to fail to provide complete access to personal data. In its response to my second request, it claimed to have fully granted the exercise of my right of access. However, after my complaint to the AEPD, it again provides new files that had not previously been provided. In the letter sent to me by Vodafone dated August 8, in response to my request for access to traffic data, location, use of TV devices, and browsing data and use of any digital device or application, it states:

"It should be emphasized that this type of data, including that generated as a result of the use of contracted services, including television services, originates as a result of the mere provision of the service, and is not stored in a structured data file that can be provided to the claimant."

However, Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, obliges the

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preservation of data generated or processed in the context of the provision of electronic communications services or public communication networks. (...)"

FIFTH: After granting a hearing to the summoned party, they state, regarding the present procedure, that "(...) The history of these interactions was transferred in PDF format with the aim of being easily downloadable and accessible by the claimant. Nevertheless, Mr. A.A.A. has pointed out that there is certain information from a small number of interactions that cannot be fully appreciated. For this reason, my client has proceeded to resend to Mr. A.A.A. the record of all interactions held in their internal systems between him and Vodafone's Customer Service in EXCEL format to the email address provided in his complaint to this Agency. (...)"

FOURTH.- Issuance of new communication to the claimant following the allegations presented to this Agency.

My client has sent a new communication to Mr. A.A.A., providing a response to the issues raised in his letter dated August 21, 2023. Additionally, all interactions with the Customer Service recorded in Vodafone's internal systems have been sent to him. (...)"

"(...) Regarding traffic data, location, use of TV devices, and navigation and usage data of any digital device or application, (...), it should be noted that in order to access the system in which this information is archived for compliance with Law 25/2007, of October 18, on the preservation of data related to electronic communications and public communication networks (hereinafter, "Preservation Law"), a judicial or police authorization is required as established in its article 1. The obligation to provide such traffic data, as well as location data concerning natural and legal persons, operates only when carried out by authorized agents, and always provided that they are requested through the corresponding judicial authorization. Furthermore, article 6.2 of the Preservation Law enumerates which agents are authorized, specifically:

- a) "Members of the Security Forces and Corps, when performing judicial police functions, in accordance with the provisions of article 547 of Organic Law 6/1985, of July 1, on the Judiciary.
- b) Officials of the Deputy Directorate of Customs Surveillance, in the exercise of their competencies as judicial police, in accordance with section 1 of article 283 of the Criminal Procedure Law.
- c) Personnel of the National Intelligence Center during security investigations concerning individuals or entities, in accordance with the provisions of Law 11/2002, of May 6, regulating the National Intelligence Center, and Organic Law 2/2002, of May 6, regulating the prior judicial control of the National Intelligence Center."

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In short, Vodafone could not provide the requested traffic data without the proper judicial authorization. Furthermore, referring to what was indicated at the time in the allegations presented by my client on August 8, 2023, "the data generated as a result of browsing, traffic, billing, and location are data that are generated inherently to the provision of the service, and are not processed for any purpose other than enabling the transmission of communications generated during the provision of the service by Vodafone." In the case of Mr. A.A.A., since he did not give his consent to process such data for commercial purposes, no profile of the claimant was created in order to provide him with relevant

commercial information tailored to his interests.

Similarly, as detailed in those allegations, the data “generated as a result of the use of the contracted services, including television services, originate as a result of the mere provision of the service, and are not stored in a structured data file that can be provided to the claimant.” The purpose of processing that data is the provision and billing of services, and as mentioned, only if the claimant had given his consent for the processing of such information for commercial purposes would a profile of his person have been created with the aim of sending him commercial communications, a circumstance that has not occurred since Mr. A.A.A. did not grant his consent for this.”

“(…) Therefore, and after the various requests for information from the claimant, where despite my client having provided all the information contained in its internal systems and databases regarding Mr. A.A.A. in a timely manner, the claimant, due to his dissatisfaction with the service provided by Vodafone, has not been satisfied, deciding once again to reiterate them despite my client having at all times provided the requested information, thus acting with the due diligence required by the regulation. In this regard, we refer again to what was stated by the Supreme Court, in its ruling 3549/2002 of May 20, which indicates that “(…) the abuse of rights or the antisocial exercise of the same that the law does not protect (art. 7.2 of the Civil Code) implies that even respecting the formal limits with the actions developed by those who hold the rights, a violation of the values or the axiological idea that is part of the content of the subjective right or the norm whose objective is being addressed occurs.” As well as what is indicated in Article 57 of the GDPR, which states that “when requests are manifestly unfounded or excessive, especially due to their repetitive nature.” Despite this, my client has responded in a timely manner to this request, as well as to the previous ones submitted by Mr. A.A.A.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each

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The control authority and according to the provisions established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions established in Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the control authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure provided in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the party complained

against for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on June 28, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

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Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including the power to "order the data controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

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The exercise of this right may be considered repetitive if it is exercised on more than one occasion within a period of six months, unless there is a legitimate reason for doing so.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a result of the denial of any of the rights regulated in the data protection legislation. Therefore, in this case, only the facts related to the requested right of access will be analyzed and evaluated, excluding the rest of the issues, such as consent or lack thereof.

The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that

e) Do the data subjects wish to access all or part of the information processed about them?

51 Furthermore, the data controller must assess whether the requests made by the applicants refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally request "information about the data processed in relation to them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as meaning that the data subjects wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish, with respect to the...

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data specifying, to have access to the source or origin of personal data or to the specified storage period. In such cases, the data controller may limit their response to the specific information requested.

6.1. General Observations

165. The right of access is subject to the limits resulting from Article 15, paragraph 4, of the GDPR (rights and freedoms of others) and from Article 12, paragraph 5, of the GDPR (manifestly unfounded or excessive requests). Furthermore, Union or Member State legislation may restrict the right of access in accordance with Article 23 of the GDPR. The exceptions related to the processing of personal data for scientific, historical, or statistical purposes or for archiving purposes in the public interest may be based on Article 89, paragraph 2, and Article 89, paragraph 3, of the GDPR, and the

exceptions for processing carried out for journalistic purposes or for academic, artistic, or literary expression may be based on Article 85, paragraph 2, of the GDPR.

166. It is important to note that, apart from the aforementioned limits, exceptions, and possible restrictions, the GDPR does not allow for other exemptions or exceptions to the right of access. This means, among other things, that the right of access has no general reservation of proportionality regarding the efforts that the data controller must make to comply with the requests of data subjects under Article 15 of the GDPR. Furthermore, it is not permitted to limit or restrict the right of access in a contract between the data controller and the data subject.

Therefore, Vodafone has provided the claimant with data from its internal systems; recorded calls; contracting documents; information about faults and about the commitments to remain, so the right of access regarding these data requests must be considered fulfilled.

Regarding the access request related to the use of TV devices, Vodafone has stated that the data generated as a result of the use of the contracted services, including television services, arise solely from the mere provision of the service, and are not stored in a structured data file that can be provided to the claimant.

Article 12.5 of the GDPR states that:

(...) When requests are manifestly unfounded or excessive, particularly due to their repetitive nature, the data controller may:

- a) charge a reasonable fee based on the administrative costs incurred to provide the information or communication or to take the requested action, or
- b) refuse to act on the request.

The data controller shall bear the burden of demonstrating the manifestly unfounded or excessive nature of the request.

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To clarify the present case, it is necessary to consider what is stated in the Access Rights Guide of the European Data Protection Committee (EDPB) (https://edpb.europa.eu/system/files/2023-04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf). It provides that, in application of Article 12.5 of the GDPR, requests for access that are manifestly unfounded or excessive, including the concept of repetition, must be interpreted restrictively.

However, it also refers to the concept of "excessive" to clarify the scope of this adjective in these cases:

"6.3.2 What does excessive mean?"

181. There is no definition of the term "excessive" in the GDPR. On the one hand, the wording "in particular because of their repetitive character" in Art. 12(5) GDPR allows for the conclusion that the main scenario for application of this limb with regard to Art. 15 GDPR is linked to the quantity of requests of a data subject for the right of access. On the other hand, the aforementioned phrasing shows that other reasons that might cause excessiveness are not excluded a priori.

182. Certainly, according to Art. 15(3) GDPR regarding the right to obtain a copy, a data subject may submit more than one request to a controller. In the event of requests that could potentially be regarded as excessive, the assessment of "excessiveness" depends on the analysis carried out by the controller and the specifics of the sector in which it operates.

183. In case of subsequent requests, it has to be assessed whether the threshold of reasonable intervals (see Recital 63) has been exceeded or not. Controllers must take into account the particular circumstances of each case carefully.

184. For example, in the case of social networks, a change in the data set will be expected at shorter intervals than in the case of land registers or central company registers. In the case of business associates, the frequency of contacts with the customer should be considered. Accordingly, the "reasonable intervals" within which data subjects may again exercise their right of access are also different. The more often changes occur in the database of the controller, the more often data subjects

may be permitted to request access to their personal data without it being excessive. On the other hand, a second request by the same data subject could be considered to be repetitive in certain circumstances.

185. When deciding whether a reasonable interval has elapsed, controllers should consider the following in the light of the reasonable expectations of the data subject:

- ☐ how often the data is altered – is information unlikely to have changed between requests? If a data pool is obviously not subject to processing other than storage and the data subject is aware of this, e.g. because of a previous request for the right of access, this might be an indication for an excessive request;
- ☐ the nature of the data – this could include whether it is particularly sensitive.
- ☐ the purposes of the processing – these could include whether the processing is likely to cause detriment (harm) to the requester if disclosed.

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- ☐ whether the subsequent requests concern the same type of information or processing activities or different ones.

186. When it is possible to provide the information easily by electronic means or by remote access to a secure system, which means that complying with such requests actually doesn't strain the controller, it is unlikely that subsequent requests can be regarded as excessive.

187. If a request overlaps with a previous request, the overlapping request can generally be regarded as excessive, if and insofar as it covers exactly the same information or processing activities and the previous request is not yet complied with by the controller without reaching the state of "undue delay" (see Art. 12(3) GDPR). In practice, as a consequence both requests could be combined.

188. The fact that it would take the controller a vast amount of time and effort to provide the information or the copy to the data subject cannot on its own render a request excessive. A large number of processing activities typically implicates bigger efforts when complying with access requests. However, as stated above, under certain circumstances requests can be regarded as excessive due to other reasons than their repetitive character. In the view of the EDPB this encompasses particularly cases of abusively relying on Art. 15 GDPR, which means cases in which data subjects make an excessive use of the right of access with the only intent of causing damage or harm to the controller.

189. Against this background, a request should not be regarded as excessive on the ground that:

- ☐ no reasons are given by the data subject for the request or the controller regards the request as meaningless;
- ☐ improper or impolite language is used by the data subject;
- ☐ the data subject intends to use the data to file further claims against the controller.

190. On the other hand, a request may be found excessive, for example, if:

- ☐ an individual makes a request, but at the same time offers to withdraw it in return for some form of benefit from the controller or
- ☐ the request is malicious in intent and is being used to harass the controller or its employees with no other purposes than to cause disruption, for example based on the fact that:
 - the individual has explicitly stated, in the request itself or in other communications, that it intends to cause disruption and nothing else; or
 - the individual systematically sends different requests to a controller as part of a campaign, e.g. once a week, with the intention and the effect of causing disruption.

6.3.3 Consequences

191. In case of a manifestly unfounded or excessive request for the right of access controllers may, according to Art. 12(5) GDPR, either charge a reasonable fee (taking into account the administrative costs of providing information or communication or taking the action requested) or refuse to comply with the request.

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192. The EDPB points out that controllers are – on the one hand – not generally obliged to charge a reasonable fee before refusing to act on a request. On the other hand, they aren't completely free to choose between the two alternatives either. In fact, controllers have to make an adequate decision depending on the specific circumstances of the case. Whereas it is hardly imaginable that charging a reasonable fee is a suitable measure in case of manifestly unfounded requests, for excessive requests – in line with the principle of transparency – it will often be more appropriate to charge a fee as compensation for the administrative costs the repetitive requests are causing.

193. Controllers must be able to demonstrate the manifestly unfounded or excessive character of a request (Art. 12(5) third sentence GDPR). Hence, it is recommended to ensure proper documentation of the underlying facts. In line with Art. 12(4) GDPR, if controllers refuse to act on an access request in whole or partly, they must inform the data subject without delay and at the latest within one month of receipt of the request of

- ☐ the reason why,
- ☐ the right to lodge a complaint with a supervisory authority,
- ☐ the possibility to seek a judicial remedy.

194. Before charging a reasonable fee based on Art. 12(5) GDPR, controllers should provide an indication of their plan to do so to the data subjects. The latter have to be enabled to decide whether they will withdraw the request to avoid being charged.

195. Unjustified rejections of requests of the right of access can be regarded as infringements of data subject rights pursuant to Art. 12 to 22 GDPR and can therefore be subject to the exercise of corrective powers by competent supervisory authorities, including administrative fines based on Art. 83(5)(b) GDPR. If data subjects consider there is an infringement of their data subject rights, they have the right to lodge a complaint based on Art. 77 GDPR."

"What is excessive?

181. There is no definition of the term "excessive" in the GDPR. On the one hand, the expression "in particular due to its repetitive nature" in Article 12, paragraph 5, of the GDPR allows us to conclude that the main scenario for the application of this part concerning Article 15 of the GDPR is linked to the number of requests from a data subject for the right of access. On the other hand, the aforementioned phrase shows that other reasons that may cause excess are not excluded a priori.

182. Certainly, in accordance with Article 15, paragraph 3, of the GDPR, relating to the right to obtain a copy, a data subject may submit more than one request to a controller. In the case of requests that could be considered excessive, the assessment of "excessiveness" depends on the analysis carried out by the controller and the specificities of the sector in which it operates.

183. In the case of subsequent requests, it must be assessed whether the threshold of reasonable intervals has been exceeded or not (see Recital 63). Controllers must evaluate whether the requests are excessive based on the context and frequency of the requests made."

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treatment must carefully consider the particular circumstances of the unique case.

184. For example, in the case of social networks, a change in the dataset is expected at shorter intervals than in the case of records. In the case of business partners, the frequency of contacts between them will be important. Consequently, the "reasonable intervals" in which data subjects can exercise their right of access are also different. The more frequently changes occur in the data controller's database, the more often data subjects may be allowed to request access without it being excessive. On the other hand, even a second request from the same data subject could be repetitive

under certain circumstances.

185. In deciding whether a reasonable interval has elapsed, data controllers must consider, in light of the reasonable expectations of the data subject:

- How frequently are the data altered? Is it unlikely that the information has changed between requests? If, obviously, a dataset is not subject to processing other than storage and the data subject is aware of this, for example, due to a previous request for the right of access, it could be an indication of an excessive request;
- The nature of the data — this could include whether they are particularly sensitive;
- The purposes of the processing: this could include whether it is likely that the processing would cause harm (damage) to the requester if disclosed;
- Whether subsequent requests relate to the same type of information or to processing activities or to different ones.

186. When it is possible to easily provide the information electronically or through remote access to a secure system, meaning that compliance with such requests does not actually affect the data controller, it is unlikely that subsequent requests could be considered excessive.

187. If a request overlaps with a previous request, the overlapping request may generally be considered excessive, as long as it covers exactly the same information or processing activities and the data controller has not yet fulfilled the previous request without reaching the state of "undue delay" (see Article 12, paragraph 3, of the GDPR). In practice, as a result, both requests could be combined.

188. The fact that the data controller requires a significant amount of time and effort to provide the information or copy to the data subject cannot, by itself, make a request excessive. A large number of processing activities often involve greater efforts when complying with access requests. However, as previously indicated, under certain circumstances, requests may be considered excessive for reasons other than their repetitive nature. In the opinion of the EDPS, this especially encompasses cases of abusive application of Article 15 of the GDPR, meaning that data subjects excessively exercise their right of access with the sole intention of causing harm or detriment to the data controller.

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189. In this context, a request should not be considered excessive for the reason that:

- the data subject does not justify the request or the data controller considers that the request is nonsensical;
- the data subject uses inappropriate or rude language;
- the data subject intends to use the data to file new claims against the data controller.

190. On the other hand, a request may be considered excessive, for example, if:

- a person makes a request but at the same time offers to withdraw it in exchange for some form of benefit from the data controller or
- the request is malicious and is used to harass a controller or its employees with no other purpose than to cause disruptions, for example, based on the fact that:
 - the person has explicitly stated, in the request itself or in other communications, that they intend to cause disturbances and nothing more;
 - or the person systematically sends different requests to a controller as part of a campaign, for example, once a week, with the intention and effect of causing disturbances.

6.3.3 Consequences

191. In the case of a manifestly unfounded or excessive request for access, data controllers may, in accordance with Article 12, paragraph 5, of the GDPR, either charge a reasonable fee (taking into account the administrative costs of providing information or communication or of taking the requested measures) or refuse to comply with the request.

192. The EDPB points out that, on the one hand, data controllers are generally not required to charge a primary reasonable fee before refusing to act on a request. On the other hand, they are not completely free to choose between the two alternatives. In fact, controllers must conduct an

appropriate analysis to make a decision based on the specific circumstances of the case. While it is hardly imaginable that charging a reasonable fee would be an appropriate measure in the case of manifestly unfounded requests, it often calls for, in line with the principle of transparency, charging a fee as compensation for the administrative costs caused by repetitive requests.

193. Data controllers must be able to demonstrate the manifestly unfounded or excessive nature of a request (Article 12, paragraph 5, third sentence of the GDPR). Therefore, it is recommended to ensure adequate documentation of the underlying facts. In accordance with Article 12, paragraph 4, if the data controller refuses to respond to a request for the right of access in whole or in part, they must inform the data subject without delay and, at the latest, within one month of receiving the request of:

- The reason for not granting the right,
- The right to lodge a complaint with a supervisory authority,

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The possibility of filing a judicial appeal.

194. Before charging a reasonable fee based on Article 12, paragraph 5, of the GDPR, data controllers must provide an indication of their plan to do so to the data subjects. The latter must be enabled to decide whether they will withdraw the request to avoid being charged.

195. Unjustified rejections of access requests may be considered infringements of the data rights of the subject in accordance with Articles 12 to 22 of the GDPR and, therefore, may be subject to the exercise of corrective powers by the competent supervisory authorities, including administrative fines based on Article 83 (5) b) GDPR. If data subjects believe there has been a violation of their rights, they have the right to lodge a complaint based on Article 77 of the GDPR.”

(Own translation)

In conclusion, Vodafone has deemed the request of the complaining party excessive and, at this point, has justified the denial based on the absence of storage of data derived from the use of TV in a structured file; therefore, Vodafone's refusal to provide this information to the complaining party is considered compliant with Article 12.5 of the GDPR.

Regarding the data for which the use and billing of services such as "call return" or "dictaSMS" is requested and/or authorized, Vodafone has informed the complainant that both services are activated if the call recipient has them enabled, and if accessed, the cost reflected in the invoices is charged. Therefore, this request should also be considered addressed as the information is reflected in the invoices.

With respect to the traffic data necessary for billing, it should be noted that Law 11/2022, of June 28, General Telecommunications, provides in its Article 66, paragraph 2, regarding traffic data and location data other than traffic data, that “end users of publicly available interpersonal communication services based on numbering shall have the following rights:

a) to have their traffic data anonymized or deleted when they are no longer necessary for the transmission of a communication. Traffic data necessary for the billing of subscribers and payments for interconnections may only be processed until the deadline for contesting the service invoice, for the refund of the charge made by the operator, for the payment of the invoice, or for the operator to demand payment; (...)”

Therefore, nothing prevents the data subject from accessing the traffic data necessary for billing during the contestation period of the service invoice.

Finally, regarding access to traffic and location data retained in compliance with Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, it should be noted that the main objective of Law 25/2007 is to establish the obligation of telecommunications operators to retain certain data generated or processed by them, in order to make them available to authorized agents. Authorized agents include, among others, members of the Police Forces authorized for this purpose within the framework of a criminal investigation for the commission

of a crime.

In this regard, the Law respects the rulings issued by the Constitutional Court concerning the right to the secrecy of communications, a respect that is particularly articulated through two guarantees: first, that the data subject to the retention obligation are exclusively linked to the communication, whether by telephone or made via the Internet, but in no case revealing the content of it; and, second, that the transfer of such data affecting a specific communication or communications will always require prior judicial authorization.

Article 1.1 of the aforementioned Law 25/2007 states that

“1. This Law aims to regulate the obligation of operators to retain the data generated or processed in the framework of the provision of electronic communications services or public communication networks, as well as the duty to transfer such data to authorized agents whenever they are requested through the corresponding judicial authorization for the purposes of detection, investigation, and prosecution of serious crimes contemplated in the Penal Code or in special criminal laws.”

And Article 3, Data subject to retention:

“1. The data that must be retained by the operators specified in Article 2 of this Law are as follows:

a) Data necessary to trace and identify the origin of a communication:

1º Regarding fixed network telephony and mobile telephony:

i) Calling telephone number.

ii) Name and address of the subscriber or registered user. (...)

b) Data necessary to identify the destination of a communication:

1º Regarding fixed network telephony and mobile telephony:

i) The number or numbers dialed (the destination telephone number or numbers) and, in cases where other services, such as call forwarding or transfer, are involved, the number or numbers to which the calls are transferred.

ii) The names and addresses of the subscribers or registered users. (...)

c) Data necessary to determine the date, time, and duration of a communication:

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1. With respect to fixed network telephony and mobile telephony: the date and time of the beginning and end of the call or, where applicable, of the messaging service or multimedia service.

(...)

d) Data necessary to identify the type of communication.

1. With respect to fixed network telephony and mobile telephony: the telephone service used: type of call (voice transmission, voicemail, conference, data), supplementary services (including call forwarding or transfer) or messaging or multimedia services used (including short message services, advanced multimedia services, and multimedia services).

(...)

e) Data necessary to identify the communication equipment of the users or what is considered to be the communication equipment:

1. With respect to fixed network telephony: the originating and destination telephone numbers.

2. With respect to mobile telephony:

i) The originating and destination telephone numbers.

ii) The International Mobile Subscriber Identity (IMSI) of the calling party.

iii) The International Mobile Equipment Identity (IMEI) of the calling party.

iv) The IMSI of the receiving party.

v) The IMEI of the receiving party.

vi) In the case of anonymous prepaid services, such as services with prepaid cards, the date and time of the first activation of the service and the location tag (the cell identifier) from which the service was activated.

(...)

f) Data necessary to identify the location of the mobile communication equipment:

1. The location tag (cell identifier) at the beginning of the communication.
2. The data that allows for the geographical location of the cell to be established, by reference to the location tag, during the period in which the communication data is retained.

2. No data revealing the content of the communication may be retained under this Law.”

Article 6, General rules on data transfer, of the aforementioned law establishes that:

“1. The data retained in accordance with the provisions of this Law may only be transferred in accordance with its provisions for the purposes determined and with prior judicial authorization.”

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Article 9 of the aforementioned Law 25/2007, Exceptions to the rights of access and cancellation, provides that:

“1. The data controller shall not communicate the transfer of data made in accordance with this Law.

2. The data controller shall deny the exercise of the right of cancellation under the terms and conditions provided in Organic Law 15/1999, of December 13.”

The exceptions regarding the exercise of the rights of Articles 15 to 22 of the GDPR must be established by law. Furthermore, from the transcription of Article 9, it can be easily observed that no restriction is established regarding the possibility of exercising the right of access. It only contains the obvious precautions that the data subject shall not be informed of the transfer of the data (an obvious issue given that it concerns criminal investigations), and that the right of deletion cannot be exercised. The conclusion is that the location data of the telephone line may be subject to a request for the right of access.

To conclude, regarding the request made by the complainant that this Agency “require Vodafone to explain when and how I was informed about the consultation of files of negative financial solvency and provide the consent that it claims in its writing is requested from the client in these cases,” it should be noted that Article 20.1 of the LOPDGDD allows, in its subsection e), the consultation of data registered in credit information systems without the need for the consent of the data subject, and only provides, in its subsection f), the obligation to inform the affected party of the result of the consultation in the event that the request for the conclusion of a contract is denied, or it does not come to fruition, as a consequence of the consultation carried out.

In the present case, from the examination of the documentation provided by the parties during the procedure, and taking into account what is stated in the first paragraph of this legal basis, it has been established that the complainant requested access to all their personal data, and that the respondent initially addressed the right incompletely, but subsequently, as stated, has provided information concerning the complainant, as well as having duly responded regarding the information of the personal data that it does not have.

However, it is not recorded that access has been provided regarding billing, traffic, and location data. Consequently, it is appropriate to uphold the complaint regarding said billing, traffic, and location data. In light of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge VODAFONE ESPAÑA, S.A.U. with NIF A80907397, to do so within ten working days following

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the notification of this resolution, send to the claiming party a certification addressing the requested

right or denying it with justification, indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution may constitute an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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